

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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ROBERT GREEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity; New
York City Police Sergeant CESAR GOMEZ (in his
individual capacity); New York City Police Officer
SEAN KERN (in his individual capacity),

Defendants.
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AMENDED COMPLAINT

Index No. 155364/2021

Plaintiff ROBERT GREEN, by and through his attorney, Joshua S. Moskovitz, Esq., as
and for his complaint alleges as follows:

JURISDICTION

1. This action arises from violations of Plaintiff's civil rights under New York State
common law, the New York State Constitution, and 42 U.S.C. § 1983.

2. The amount of damages sought exceeds the jurisdiction of all lower courts which
would otherwise have jurisdiction.

VENUE

3. Venue is proper in New York County pursuant to C.P.L.R. § 503(3) as this is an
action against the City of New York and its officers, and New York County is where the events
giving rise to this action took place.

JURY DEMAND

4. Plaintiff demands a trial by jury in this action on each and every one of his claims
for which jury trial is legally available.

THE PARTIES

5. Plaintiff ROBERT GREEN is a citizen of the United States and of the State of New York.

6. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain, manage, supervise, and control a police department, and does maintain the New York City Police Department (“NYPD”).

7. The NYPD is a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the governing law, rules, and regulations of the City.

8. Upon information and belief, at all relevant times, defendants New York City Police Sergeant CESAR GOMEZ and New York City Police Officer SEAN KERN were citizens of the United States and the State of New York.

9. At all relevant times, defendants GOMEZ and KERN were employed by the City and/or NYPD and acted under color of law.

10. At all relevant times, defendants GOMEZ and KERN acted in the course and scope of their duties and authority as an officer, agent, servant, and/or employee of the NYPD and/or the City.

11. At all relevant times, defendants GOMEZ and KERN were assigned to the NYPD’s Citywide Anti-Crime unit and/or Strategic Response Group.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

12. On January 24, 2020, Plaintiff served a Notice of Claim setting forth all facts and information required by General Municipal Law § 50-e upon the City of New York by electronic delivery as prescribed by the Office of the New York City Comptroller.

13. Defendant City acknowledged receipt of plaintiff's claim and assigned it claim number 2020PI002942.

14. On May 13, 2021, Defendant City conducted an examination of Plaintiff pursuant to New York General Municipal Law § 50-h.

15. More than thirty days have elapsed since service of Plaintiff's notice of claim and adjustment or payment of Plaintiff's claim has been neglected.

16. This action was filed within one-year and ninety-days after the events giving rise to plaintiff's claims, as tolled by the Executive Orders of the Governor of New York due to COVID.

STATEMENT OF FACTS

17. On or about July 21, 2019, at or about 2:30 a.m., in the vicinity of East 112th Street and Fifth Avenue in New York County, defendants GOMEZ and KERN, without lawful justification or authority, detained, stopped, frisked, searched, and arrested Plaintiff.

18. Defendants GOMEZ and KERN also seized Plaintiff's personal property, including his bicycle and cell phone, and searched Plaintiff's property without lawful justification or authority.

19. Defendants GOMEZ and KERN provided false information to the Manhattan District Attorney's Office concerning the circumstances of their detention, stop, frisk, search, and arrest of Plaintiff.

20. Because of the false information provided by defendants GOMEZ and KERN, felony criminal charges were filed against Plaintiff.

21. Defendants GOMEZ and KERN did not have probable cause to prosecute the criminal charges filed against Plaintiff because they were aware that they had illegally obtained evidence necessary to prove those charges.

22. Knowing that they had illegally obtained this evidence, Defendants GOMEZ and KERN falsified their statements to the District Attorney's Office concerning the circumstances of their detention, stop, frisk, search, and arrest of Plaintiff.

23. Upon information and belief, Defendant GOMEZ and/or Defendant KERN provided false testimony to a grand jury and/or prepared false statements that were presented to a grand jury concerning the circumstances of their detention, stop, frisk, search, and arrest of Plaintiff.

24. Based on the false testimony and/or false statements of Defendant GOMEZ and/or Defendant KERN, the grand jury indicted Plaintiff for a felony offense.

25. Because of the false testimony and/or false statements of Defendant GOMEZ and/or Defendant KERN, Plaintiff was remanded to custody after being arraigned on the felony charge and was held in custody until he was released on or about October 29, 2019.

26. On or about November 15, 2019, a suppression hearing was held in front of Hon. Gregory Carro (Justice of the Supreme Court, New York County).

27. Defendants GOMEZ and KERN testified falsely at that hearing.

28. On or about January 13, 2020, Hon. Carro issued a Decision and Order finding that "the officers did not have reasonable suspicion" and therefore, "they were not permitted to frisk or search" Plaintiff.

29. Among other things, Hon. Carro found that “Gomez and Kern were somewhat inconsistent in describing the stop,” and “Kern’s testimony was directly contradicted by the video evidence, and I cannot credit it.”

30. Hon. Carro suppressed the evidence that Defendants GOMEZ and KERN illegally obtained and dismissed the indictment against Plaintiff.

31. When Plaintiff was illegally arrested, personal property was seized from him that was either not returned to him or damaged when it was returned to him.

32. As a result of the foregoing, Plaintiff suffered, *inter alia*, the loss of liberty, psychological injuries, pain and suffering, emotional distress, financial loss, and the deprivation of his civil rights.

FIRST CAUSE OF ACTION
Unlawful detention/stop

33. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

34. Defendants GOMEZ and KERN, through the foregoing acts, caused Plaintiff to be wrongfully detained and/or stopped Plaintiff without an objective credible reason, founded suspicion, reasonable suspicion, probable cause, or other legal justification.

35. Plaintiff was aware of this detention and stop and did not consent to it.

36. Defendants GOMEZ and KERN committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff’s rights and are therefore liable for punitive damages.

37. The City is vicariously liable for the conduct of Defendants GOMEZ and KERN.

SECOND CAUSE OF ACTION
Unlawful frisk/search

38. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.
39. Defendants GOMEZ and KERN, through the foregoing acts, frisked and/or searched Plaintiff without an objective credible reason, founded suspicion, reasonable suspicion, probable cause, or other legal justification.
40. Plaintiff did not consent to the frisk and/or search.
41. Defendants GOMEZ and KERN committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.
42. The City is vicariously liable for the conduct of Defendants GOMEZ and KERN.

THIRD CAUSE OF ACTION
False Imprisonment

43. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.
44. Defendants GOMEZ and KERN, through the foregoing acts, caused Plaintiff to be imprisoned without an objective credible reason, founded suspicion, reasonable suspicion, probable cause, or other legal justification.
45. Plaintiff was aware of this imprisonment and did not consent to it.
46. Defendants GOMEZ and KERN committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.
47. The City is vicariously liable for the conduct of Defendants GOMEZ and KERN.

FOURTH CAUSE OF ACTION
Malicious Prosecution

48. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

49. Defendants GOMEZ and KERN were responsible for initiating a criminal proceeding against Plaintiff without probable cause.

50. Defendants GOMEZ and KERN were aware there was not probable cause to prosecute Plaintiff.

51. Defendant GOMEZ and/or Defendant KERN provided false testimony to a grand jury and/or provided false statements that were presented to the grand jury, and the grand jury returned an indictment based on that false testimony and/or statements.

52. The conduct of Defendants GOMEZ and KERN deviated so egregiously from acceptable police practice as to demonstrate an intentional or reckless disregard for proper procedure.

53. The criminal proceeding was terminated in Plaintiff's favor when the indictment against him was dismissed.

54. The proceeding was brought with malice, which is shown by the above-stated facts establishing a lack of probable cause, and that Defendants GOMEZ's and KERN's conduct was reckless or grossly negligent.

55. Defendants GOMEZ and KERN committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

56. The City is vicariously liable for the conduct of Defendants GOMEZ and KERN.

FIFTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

57. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

58. Defendants GOMEZ and KERN, through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally, and/or recklessly caused Plaintiff to experience severe mental and emotional distress, pain, suffering, and damage to name and reputation.

59. Defendants GOMEZ and KERN committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

60. The City is vicariously liable for the conduct of Defendants GOMEZ and KERN.

SIXTH CAUSE OF ACTION
New York State Constitutional Violations

61. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

62. The acts and omissions of Defendants GOMEZ and KERN deprived Plaintiff of rights, privileges, and immunities guaranteed by Article 1 §§ 6 and 12 of the New York State Constitution, including the right to a fair trial, to be free from the deprivation of liberty without due process of law, and to be free from unreasonable searches and seizures.

63. As a direct and proximate result of Defendants GOMEZ's and KERN's deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered the injuries and damages set forth above.

64. Defendants GOMEZ and KERN committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

65. The City is vicariously liable for the conduct of Defendants GOMEZ and KERN.

SEVENTH CAUSE OF ACTION

Violations of the United States Constitution Brought Under 42 U.S.C. § 1983

66. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

67. The acts and omissions of Defendants GOMEZ and KERN deprived Plaintiff of rights, privileges, and immunities guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution, including the right to a fair trial, to be free from the deprivation of liberty without due process of law, and to be free from unreasonable searches and seizures.

68. As a direct and proximate result of Defendants GOMEZ's and KERN's deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the United States Constitution, Plaintiff suffered the injuries and damages set forth above.

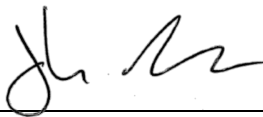
69. Defendants GOMEZ and KERN committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

WHEREFORE, plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against Defendants GOMEZ and KERN in an amount to be determined by a jury;
- (C) reasonable attorneys' fees;
- (D) the costs and disbursements of this action;
- (E) interest; and
- (F) such other and further relief as appears just and proper.

Dated: Jersey City, New Jersey
November 12, 2021

THE LAW OFFICE OF JOSHUA MOSKOVITZ, P.C.
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By: 
Joshua S. Moskowitz

Attorneys for Plaintiff Robert Green